

JUDGMENT SHEET  
LAHORE HIGH COURT, LAHORE  
JUDICIAL DEPARTMENT

**Writ Petition No.31869-2014**

***Muhammad Hanif***

**Vs**

**Addl. District Judge, Faisalabad, etc**

*Date of hearing:* 03.12.2014

Petitioner by: Mr. Riasat Ali, Advocate.

Respondent by: Nemo.

**MIRZA VIQAS RAUF, J:-** The petitioner has challenged the order dated 19<sup>th</sup> of November, 2014, passed by learned Additional District Judge, Faisalabad, whereby appeal filed by the petitioner against the order dated 5<sup>th</sup> of June 2014, passed by the learned Special Judge (Rent Faisalabad) has been dismissed.

2. Briefly the facts necessary for the adjudication of instant petition are that the respondent No.3 filed an ejectment petition before the learned Rent Tribunal, Faisalabad against the petitioner claiming that he being landlord of shop No.2 situated near 98/D, Samanabad Tehsil and District Faisalabad rented out the same to the petitioner. The ejectment was sought on multiple grounds including the personal bona fide need and default in of payment of rent. The petitioner initially submitted his application for leave to contest before the learned Rent Tribunal, wherein he asserted that he purchased the property in question by way of an agreement and now he is no more tenant of respondent No.1. Learned Rent Tribunal initially granted leave to the petitioner and also framed the following issues:-

**ISSUES**

1. Whether the petitioner is entitled to get the decree for eviction as prayed for ?OPD.
  2. Whether the petitioner is entitled to get the decree for rent arrears amounting to Rs.79,630/- OPD
  3. Whether there does not exist any relationship of land lord and tenant between the parties.?OPR
  4. Whether the petitioner had sold the property in question and the respondent was in possession as owner ?OPR
  5. Relief.
3. After framing of issues the respondent No.3 led his evidence and in this regard he himself appeared as PW-1, Mazhar Iqbal as PW-2 and Muhammad Arif as PW-3. He also tendered affidavit Ex.A-1 rent deed, Ex.D2 affidavit Ex.A-3 and Ex.A-4 and in addition to the same a copy of sale deed was also produced in the documentary evidence. Since the petitioner failed to appear before the learned Rent Tribunal so he was proceeded ex.parte. The the learned Rent Tribunal after conducting ex.parte proceedings allowed the ejectment petition vide its order dated 5<sup>th</sup> of June, 2014, whereby the petitioner was directed to vacate the rented premises within one month from the date of the order and also to pay the remaining amount of Rs.37,370/- to respondent No.3, failing which the law will take its own course.
4. Feeling aggrieved of the order passed by the learned Rent Tribunal the petitioner preferred an appeal before the learned Additional District Judge Faisalabad, which was dismissed vide order dated 19<sup>th</sup> of November, 2014.
5. Learned counsel for the petitioner contended that the respondent No.3 was not the owner at the time of filing of ejectment petition, so the ejectment petition was incompetent at its inception. He further contended that the petitioner purchased the property in question through an agreement and his possession is not of tenant but he is occupying premises as owner. He maintained that the Suit

for Specific Performance of the agreement is also pending before the learned Civil Court Faisalabad. The learned counsel for the petitioner further added that initially the learned Rent Tribunal has granted the petitioner leave to defend on the basis of material brought before the Rent Tribunal but later on his eviction order has been passed, while misreading the evidence available on the record. He further submitted that the learned Additional District Judge has failed to apply its judicial mind while dealing with the appeal filed by the petitioner. Thus the impugned orders passed by both the Courts below are nullity in the eyes of law.

6. I have heard the learned counsel for the petitioner at some length and also perused the record.

7. The respondent No.3 filed the ejectment petition claiming himself being the landlord of premises in question. As per averments contained in the ejectment petition the petitioner was inducted in the premises as tenant in terms of rent agreement. The eviction of the petitioner was sought on the ground of default in payment of rent, damage to the property and personal bona fide need. The petitioner while submitting his application for leave to contest did not deny his status as tenant but he asserted that after execution of the agreement to sell relationship between the parties as landlord and tenant ended. The learned Rent Tribunal initially granted leave to defend to the petitioner vide order dated 17<sup>th</sup> of February, 2014 and thereafter, issues were framed from the divergent pleadings of the parties. During the proceeding before the learned Rent Tribunal the petitioner dislocated himself from the said proceedings which resulted into passing of the order dated 27<sup>th</sup> of May, 2014, whereby he was proceeded ex.parte. Before ex.parte proceeding order evidence of the respondent No.3 was recorded by the learned Rent Tribunal. The petitioner duly cross-examined the witnesses produced by respondent No.3, however, due to his absence from the proceedings he was proceeded ex.parte and no evidence could be led on his behalf. The learned Rent Tribunal, after pondering upon evidence adduced by respondent No.3 passed the order dated 5<sup>th</sup> of June, 2014, whereby the petitioner was directed to vacate the premises within one month from the date of

the receipt of order and also to pay remaining amount of Rs.37,370/- to the respondent No.1. Though the petitioner preferred an appeal before the learned Additional District Judge, Faisalabad but the same was also dismissed. I have examined the relevant record as well as the orders passed by both the courts below. It is an admitted fact that the petitioner occupied the premises in question as a tenant of respondent No.3. It is, however, the case of the petitioner that since he has purchased the premises through agreement to sell, so now his status has challenged and now he has become the owner of the property. In this regard he has also relied on the civil suit pending before the concerned court for the Specific Performance of the said agreement. The petitioner also admitted that after 26<sup>th</sup> of December, 2012 he did not pay any rent to respondent No.3. In the light of these admitted facts it would be appropriate to first peruse the relevant provisions of law attracted to the instant proposition and in this context **Section 2(d)** of the Punjab Rented Premised Act, 2009, which provides the definition of "Landlord" as under:-

**" Landlord" means the owner of premises and includes a person for the time being entitled or authorized to receive rent in respect of the premises."**

In addition to the above referred provision it would also be advantageous to reproduce Section 10 of the Act which reads as under :-

**"10. Effect of other agreement. An agreement to sell or any other agreement entered into between the landlord and the tenant, after the execution of a tenancy agreement, in respect of premises and for a matter other than a matter provided under the tenancy agreement, shall not affect the relationship of landlord and tenant unless the tenancy is revoked through a written agreement entered before the Rent Registrar in accordance with the provisions of section 5."**

8. The bare perusal of the above provisions postulate that it is not necessary that landlord should always be owner of the premises but any person who for the time being entitled or authorized to receive the rent in respect of the premises also fall within the definition of landlord so no cavil left to this aspect that respondent No.3 is the landlord of the premises in question. So for the

question of attaining the title through agreement to sell is concerned Section 10 of the Act *ibid* is very clear wherein it is laid that no such agreement to sell which is executed between landlord and tenant after the execution of tenancy agreement in respect of premises and for a matter other than a matter provided under tenancy agreement shall effect the relationship of landlord and tenant unless the tenancy is revocable through rent agreement entered before the Rent Registrar in accordance with the provision of Section 5 of the Act. The Hon'ble Supreme Court of Pakistan, in somewhat similar circumstances also laid down the principles to this effect in case titled **"MUHAMMAD NISAR Vs. IZHAR AHMED SHEIKH AND OTHERS" (PLD 2014 S.C 347)** . The relevant extract from the above quoted citation is reproduced below for convenience:-

**"Per settled law in such circumstances when the tenant puts up a plea in an ejectment application that he had purchased the property then he has to file a suit for his remedies (which has already been done) and vacate the premises and thereafter if he succeeds he would be entitled to take possession of the premises again. In this regard reference can be made to the cases cited at the bar by the learned Advocate Supreme Court appearing for the respondents."**

This Court while dealing with the same issue in the case titled **"Syed TAFSIR HUSSAIN vs MUHAMMAD RASHID JANJUA" (2013 MLD 1648)** has also held at page 1654 as under:-

**"A tenant could not be protected from ejectment merely by asserting agreement to sell in his favour or by filing a suit for specific performance of agreement to sell, unless sale-deed was executed in his favour and agreement to sell had been enforced. Filing of civil suit does not vitiate the title of the landlord unless the same was finally decided."**

Similar view was taken by this Court in the case of **"Sabir Ali Sheikh v. Haji Nawab Din" (2002 MLD 384)**. Relevant extract from the same is reproduced below:-

**" No doubt the finding has been recorded by the learned Rent Controller that a Civil Court would not come to his (respondents) rescue, but to my mind, the learned Rent Controller has not resolved this proposition. Under the law of ejectment the tenant cannot be**

protected from ejectment merely impleading the agreement to sell in his favour of filing the suit for specific performance unless the sale-deed is executed in his favour and the agreement to sell has been enforced.”

In this context reliance can also be placed on the case of “Muhammad Akram Vs, Haji Ijaz Ahmed and others (2006 SCMR 946 ) wherein the Hon’able apex court while dealing with the matter akin to the present issue held as under:-

“4. Learned counsel for the petitioner also attempted to argue on the basis of rule laid down in the case of Rehmatullah v. Ali Muhammad and another 1981 SCMR 1064 that in view of civil suit pending before the civil Court for specific performance of oral agreement of sale of the property in dispute, the proceedings in the ejectment petition should have either been stayed or the parties directed to get dispute as to title settled by the civil Court. He also suggested during the arguments that this Court in view of the said pending suit of specific performance of agreement may keep this petition pending and postpone the hearing keeping in view the spirit of rule laid down in the case of Rehmatullah (supra).

5. We may deal with the latter contention first. In the present case, there was neither any dispute nor the same could be raised about the ownership of the respondents of the property in dispute, for it is petitioner’s own case that they (respondents) had allegedly agreed to sell the same to him therefore, the question of title is not disputed in the present case which could be referred to the civil Court for resolution.

6. The respondents were required to prove in the ejectment petition that they were entitled to receive rent of the premises by proving that the petitioner was inducted in the premises as tenant.

7. There is no denial of the fact that as owner of the property, the respondents were entitled to receive the rent. The only fact which the respondents were obliged to prove the satisfaction of the Court was that the petitioner was occupying the property as their tenant. The respondents produced rent note Exh.A.1 which according to them was executed by the petitioner when he was inducted in the premises by examining the petition writer as A.W.1 and an Advocate who drafted the same as A.W.6.A.W.1 admitted that the petitioner was known to him earlier because he used to get documents scribed by him as petition writer. A.W.6 was the counsel of the respondents who was consulted in the matter of drafting of the rent deed. The first Appellate Court after reappraisal of evidence in detail did not agree with the inferences drawn by the Rent

Controller and held that execution of this document was sufficiently proved which established existence of relationship of landlord and tenant between the parties. Learned counsel for the petitioner has not been able to persuade us that these findings by the first Appellate Court were based either on misreading or non-consideration of any material piece of evidence. The first Appellate Court was the final Court on facts and law. According to the principles laid down by the superior Courts, findings both on facts and law recorded by the Rent Controller were open to scrutiny by the Appellate Court which on reappraisal of evidence could come to a different conclusion and substitute its own findings if the findings recorded by the Rent Controller were found to be not based on correct appraisal of evidence. In other words, the findings recorded by the Rent Controller were subject to correction by the first Appellate Court in appeal.”

9. The nut shell of the above discussion is that both the courts below have rightly determined the relationship between the parties and passed the well-reasoned orders after duly appreciating the material available on the record and keeping in view the law applicable thereto. There are concurrent findings against the petitioner directing his eviction from the premises and both the courts below did not commit any illegality or material irregularity warranting any interference by this Court in exercise of writ jurisdiction. This being so, the petition in hand fails and is hereby dismissed in limine without any order as to costs.

**(Mirza Viqas Rauf)  
Judge**

**Approved for Reporting**

**JUDGE**

Ramzan